BY ORDER OF THE SUPERINTENDENT

HQ UNITED STATES AIR FORCE ACADEMY INSTRUCTION 36-3534

5 OCTOBER 2023

Personnel

VIOLATIONS OF ACADEMIC STANDARDS

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Department of the Air Force Policy Directive (DAFPD) 36-35, United States Air Force Academy, and provides guidance for determining academic penalties for violations of academic standards. This instruction applies to all United States Air Force Academy (USAFA) personnel involved with cadet or cadet candidate graded work. This publication does not apply to Air Force Reserve Command (AFRC) units and the Air National Guard (ANG). This publication applies to the United States Space Force. Compliance with the attachments in this publication is/is not mandatory. This publication may not be supplemented or further implemented/extended. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using Department of the AF Form 847, Recommendation for Change of Publication. The authorities to waive requirements in this publication are identified with a Tier 3 (T-3) number following the compliance statement. See Department of Air Force Manual (DAFMAN) 90-161, Publishing Processes and Procedures, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority. The waiver authority for non-tiered requirements in this publication is USAFA/DFA. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, Records Management and Information Governance Program, and are disposed in accordance with the Air Force Records Disposition Schedule, which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include the addition of factors for mission element leads to consider in determining whether a violation of academic standards warrants a more severe penalty than a zero on an assignment, clarification on means and timing of notification for academic penalties, and a requirement for instructors to enter comment cards when a cadet receives an academic penalty.

1. Violation of Academic Standards. A violation of academic standards, which are those standards relating to academic integrity or institutional values, is of serious academic concern. Academic penalties are imposed to protect the academic integrity of the institution and the relative class standing of those who abide by academic standards. Additionally, academic penalties serve as a correction of the academic record to reflect the grade or score the cadet earned without unfair advantage. Intent to violate academic standards, although informative to penalty proportion, is not required for the determination that a violation occurred.

2. Academic Penalties. Decision authorities will determine whether a cadet or cadet candidate has violated academic standards. For the purposes of this instruction, the decision authorities for cadet matters are the Dean of Faculty (DF) academic department heads, the Dean of Academics and academic department heads at the Preparatory School, and the Department Head for Physical Education (USAFA/ADP) for Physical Education classes.

2.1. Penalty Proportions. In general, the penalty shall be proportional to the severity of the violation. Penalties shall not be token, which might encourage contempt for academic standards. Ordinarily, the most severe academic penalty shall be a zero on the assignment; however, decision authorities may award a lesser penalty. Before assignments are collected, instructors are encouraged to remind cadets and cadet candidates to document all help received and provide an opportunity to correct or modify missing or vague documentation statements without significant academic penalty, subject to decision authority guidance.

2.2. Severe Penalties. If decision authorities believe that circumstances warrant a more severe penalty than zero on the assignment, they will recommend a penalty for approval by the appropriate mission element lead. More severe academic penalties may include removal from the course and awarding a course grade of "F." To ensure fairness and consistency in determining whether a violation of academic standards warrants a more severe penalty, the mission element lead should consider the following factors:

2.2.1. The character and past service of the cadet or cadet candidate, including, but not limited to, whether the individual has prior violations of the Cadet Honor Code related to academic integrity and/or prior violations of academic standards.

2.2.2. Although separate from the cadet honor process, the cadet's class year to potentially include USAFA Preparatory School time as applicable, which indicates the cadet's time under the Cadet Honor Code, the Leader of Character Framework, and USAFA academic standards, may be considered to the extent such time is viewed as developmental.

2.2.3. The nature and circumstances of the offense, to include, but not limited to, the scope of the offense, the seriousness of the offense, the intent of the cadet or cadet candidate, and the cooperation of the cadet or cadet candidate. The scope of the offense includes whether other individuals were involved and the particular cadet or cadet candidate's role in the

offense, for example, whether they were the instigator or leader or a participant. The seriousness of the offense includes the offense's effect on good order and discipline and the academic integrity and reputation of USAFA. The intent of the cadet or cadet candidate encompasses whether the violation of academic standards was negligent or deliberate. Evidence of planning, calculation, and/or the use of technology in deliberately violating academic standards makes the offense more egregious. Lastly, the cooperation of the cadet or cadet candidate incorporates whether the individual admitted to the violation of academic standards, the individual's forthrightness, and the individual's attitude towards the violation.

2.2.4. The views and recommendation of the initiator, or individual who discovers and reports the violation of academic standards, are also relevant to consider in determining whether severe academic penalty is warranted.

2.2.5. Finally, the treatment of similar offenses and similarly situated offenders will be considered. While not case dispositive, consideration of this factor fulfills the goal of fairness and consistency in administration of severe academic penalties.

3. Standard of Proof. The decision authority's determination that an individual violated academic standards must be based on a preponderance of credible evidence, meaning that the weight of that evidence is sufficient to incline a fair and impartial mind to find it more likely than not that a violation occurred. Proof beyond a reasonable doubt is not required. The decision authority's determination that an individual violated academic standards is separate and distinct from the determination as to whether a violation of the honor code occurred.

4. Procedures for Determining Academic Penalties for Academic Standards Violations.

4.1. Initial Notification. When it appears a cadet or a cadet candidate has violated academic standards, the decision authority will carefully review all the relevant evidence. The decision authority will notify the individual in writing of the allegation and his or her intent to impose an academic penalty. The notification should also inform the cadet or cadet candidate that they have three duty days to respond if they so choose. An email from the decision authority to the cadet or cadet candidate satisfies the requirement for written notification. The individual will then have three duty days to respond to the allegation.

4.2. Determination. After thoroughly reviewing all the relevant evidence (including the individual's response to the allegation, if any), the decision authority will, in a timely manner, determine if there was a violation of academic standards in accordance with **paragraph 1**. This determination is independent of any associated honor violation proceeding, which means that the result of an Honor Board does not bind the decision authority (e.g., a cadet may still receive an academic penalty even if found not in violation of the Honor Code). The decision authority will notify the individual in writing of this decision and the reasons. An email from the decision authority to the cadet or cadet candidate satisfies the requirement for written notification. If academic standards have been violated, the Air Officer Commanding (AOC) will be informed and the matter will be referred to the Cadet Honor System or Cadet Candidate Honor System as appropriate. If the mission element lead imposes a more severe academic penalty than zero on the assignment, the individual's AOC and academic advisor will be notified promptly as well.

4.3. Documenting academic penalties. When a cadet receives an academic penalty, the instructor is required to input a comment card, explaining the academic penalty, into the cadet information system.

4.4. Assignment of Course Grade of "F" or Removal From Course. If a course grade of "F" is awarded or a cadet is removed from the course, the decision authority will notify, in writing, the individual, AOC, academic advisor, and Office of the Registrar (USAFA/DFR). If the cadet is an intercollegiate athlete, the Vice Director of Athletics (USAFA/ADV) will also be notified. For cadet candidates, the Preparatory School decision authority will coordinate grade changes and make any appropriate notifications.

LINELL A. LETENDRE, Brig Gen, USAF
Dean of the Faculty

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DAFMAN 90-161, Publishing Processes and Procedures, 14 April 2022

AFI 33-322, Records Management and Information Governance Program, 27 July 2021

DAFPD36-35, United States Air Force Academy, 31 July 2022

Adopted Forms

DAF Form 847, Recommendation for Change of Publication

Abbreviations and Acronyms

AF—Air Force

AFPD—Air Force Policy Directive

AFMAN—Air Force Manual

AOC—Air Officer Commanding

DoD—Department of Defense

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

USAFA—United States Air Force Academy

Terms

Academic Standards—USAFA academic standards require cadets and cadet candidates to accomplish their own academic work within the specific guidance provided for each assignment. In some cases, guidance will dictate that cadets and cadet candidates must work independently, without relying on any external resources (e.g., classmates, notes, books, etc.); in others, cadets and cadet candidates may be authorized to consult with classmates, instructors, published works (e.g., books, journal articles, etc.), or other resources. Instructors are responsible for providing cadets and cadet candidates with clear guidance about what is and is not allowed on each assignment. Academic standards falling within the meaning and purview of this instruction are those standards relating to academic integrity or institutional values. Cadets and cadet candidates are required to give credit for any work that is not their own through appropriate documentation of the ideas and words of other individuals and sources, even when the source is not authorized.

Decision Authority—DF academic department heads and the Dean of Academics and academic department heads of the Preparatory School. The Department Head for Physical Education (USAFA/ADP) is the decision authority for Physical Education classes.

Mission Element Lead—Dean of the Faculty; Commandant of Cadets; Director of Athletics; or Commander, Preparatory School (or officers they designate).

Violation of Academic Standards—Conduct incompatible with academic integrity or institutional values (e.g., submission of work for credit that is not the cadet's or cadet candidate's own, whether intentional or not). Not every violation of standards or policy is a violation of academic standards within the purview of this instruction (e.g., standards regarding timely submission of work or formatting instructions). Nothing within this instruction impedes or precludes the ability of Departments to establish academic guidelines, policies, or standards outside of those falling within the definition of academic standards within this instruction.

Attachment 2

SAMPLE SEVERE ACADEMIC STANDARDS VIOLATION NOTIFICATION

(Appropriate Letterhead)

(Date)

MEMORANDUM FOR (C_C FULL NAME)

FROM: (Department Symbol)

SUBJECT: Notification of Severe Academic Penalty for Academic Standards Violation

Reference: USAFAI 36-3534, Violations of Academic Standards

1. It has come to my attention that on or about (date), you violated academic standards by (allegation). I am considering recommending that the Dean of the Faculty impose a severe academic penalty, consisting of (describe the recommended penalty, e.g., assignment of a course grade of "F").

2. BACKGROUND: As defined by USAFAI 36-3534, a violation of academic standards consists of conduct incompatible with academic integrity or institutional values, for example submission of work for credit that is not the cadet's own, whether intentional or not. Ordinarily, the most severe academic penalty for a violation of academic standards shall be a zero on the assignment. However, if circumstances warrant, a more severe penalty may be awarded, such as removal from the course and awarding a course grade of "F." Such severe penalties must be approved by the mission element lead, in this case, the Dean of the Faculty.

3. I have considered the totality of the circumstances of the violation of academic standards alleged above. In recommending a severe academic penalty, I have specifically considered the following circumstances [only include those factors considered, tailor to circumstances of case]:

a. The character and past service of the cadet (e.g. past honor violations, past academic standards violations);
b. Time under the code (time as a cadet and/or cadet candidate);
c. The nature and circumstances of the offense, to include, but not limited to, the scope of the offense (other cadets involved, this cadet's role as instigator/leader/participant), the seriousness of the offense (effect on good order and discipline, academic integrity and reputation of USAFA), the intent of the cadet (negligent vs. deliberate, evidence of planning, use of technology), and the cooperation of the cadet (forthrightness and attitude);
d. The views and recommendation of the initiator, or individual who discovers and reports the violation of academic standards;
e. The treatment of similar offenses and similarly situated offenders.

4. This memorandum serves as notification of my belief of your violation of academic standards and intention to recommend the Dean of the Faculty impose a severe academic penalty. You

will acknowledge receipt and return this memorandum to me, with your response, if any, within three (3) duty days of your receipt. Any comments or documents you want to be considered in response to this notification must be included in your response.

5. DISCLOSURE: Your written acknowledgement of receipt and signature are mandatory. Any comments or documents you provide are voluntary.

NAME, Colonel, USAF
Permanent Professor and Department Head

Attachment:
Informal Clarification MFR, dated DATE, X pages
Formal Clarification MFR, dated DATE, X pages
1st Ind, (C_C FULL NAME)

TO: USAFA/DF__

I acknowledge receipt and understanding on _____. I understand that I have three (3) duty days from the date of this indorsement to provide a response to this notification, and that I must include in my response any comments or documents I wish to be considered concerning this letter. My response is due by _____.

NAME, C_C, USAFA

2d Ind, USAFA/DF_ Date:_____

MEMORANDUM FOR USAFA/DF_

I have/have not received documentation from (C_C Name) on _____. I have considered any matters submitted in response to this notification. I find that (C_C Name) did/did not commit the actions alleged in **paragraph 1** of the notification memorandum, and thus that (C_C Name) did/did not violate academic standards. Therefore, I do/do not recommend the severe academic penalty discussed above.

NAME, Colonel, USAF
Permanent Professor and Department Head

3d Ind to USAFA/DF_, ORIGINAL MEMO DATE, Notification of Severe Academic Penalty

USAFA/DF Date:_____

MEMORANDUM FOR (C_C FULL NAME)

I have considered the recommendation of the Department Head and any matters submitted in response to this notification. I find that (C_C Name) did/did not commit the actions alleged in **paragraph 1** of the notification memorandum, and thus that (C_C Name) did/did not violate academic standards. Therefore, I impose/do not impose the severe academic penalty discussed above.

LINELL A. LETENDRE, Brig Gen, USAF
Dean of the Faculty
DISTRIBUTION:
C_C FULL NAME
CS XX/AOC
Academic Advisor
USAFA/DFR
USAFA/ADV (if cadet is intercollegiate athlete)